

HOUSE No. 5266

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 19, 2026.

The committee on Environment and Natural Resources, to whom was referred the petition (accompanied by bill, House, No. 898) of Michelle L. Badger relative to the use of horseshoe crabs for bait, reports recommending that the accompanying bill (House, No. 5266) ought to pass.

For the committee,

CHRISTINE P. BARBER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to end the taking of horseshoe crabs for bait.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 130 of the General Laws is hereby amended by adding the following section:-

2 Section 107. (a) As used in this section, the following term shall, unless the context
3 clearly requires otherwise, have the following meaning:

4 “Horseshoe crab,” the species known as *Limulus polyphemus*.

5 (b) The Department shall establish a plan that gradually eliminates the harvesting of
6 horseshoe crabs and reaches full elimination by January 1, 2029.

7 (c) The director may authorize the taking of horseshoe crabs by permit for educational or
8 scientific purposes; provided that, the director determines that such harvesting will not cause
9 harm to the horseshoe crab population of coastal waters.

10 (d) The taking of horseshoe crabs incidentally during legal fishing operations shall not
11 violate this section if the horseshoe crabs are returned immediately to coastal waters unharmed.

12 (e) Any person who violates the provisions of this section shall be fined \$25 for each
13 horseshoe crab taken from coastal waters. No penalty shall result in possessing a cast off or
14 molted shell also known as an exoskeleton of a horseshoe crab.

15 (f) Pursuant to chapter 30A, the division shall promulgate rules and regulations to enforce
16 the provisions of this section.